



Costs Decision

Site visit made on 25 August 2026

by **C McDonagh BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Costs application in relation to Appeal Ref: 6011301

Land at Doctors Hill, Bournheath, Bromsgrove B61 9JE

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Mark Donald for a full award of costs against Bromsgrove District Council.
 - The appeal was against the refusal of permission in principle for 'erection of between 3no. and 5no. bungalows and houses.'
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Decision

1. The application for an award of costs is refused.

Reasons

2. The Planning Practice Guidance (PPG) advises that parties in planning appeals normally meet their own expenses. However, costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process. Costs can only be awarded in relation to unnecessary or wasted expense incurred at the appeal stage, although behaviour and actions at the time of the planning application can be taken into account in the Inspector's consideration of whether or not costs should be awarded.
3. Unreasonable behaviour in this context can be taken to be either procedural, relating to the process; or substantive, relating to the issues arising from the merits of the appeal. In this case, the allegations from the applicant are based only on substantive grounds. Paragraphs 047 and 049 of the PPG appeal chapter offer some examples of unreasonable behaviour by local planning authorities, albeit neither list is exhaustive. For the purposes of this application, this includes preventing or delaying development which should clearly be permitted.
4. The applicant alleges that the Council has underestimated the severity of its housing land supply shortage and not given enough weight to the benefits of 3-5 dwellings towards this undersupply. The housing supply was given as 2.24 years which is clearly a significant shortfall against the required 5 years. The National Planning Policy Framework (the Framework) seeks to significantly boost the supply of houses. Although a revised version was published during the appeal process, this aim remains fundamental.
5. However, this is not without restrictions or limitations, even when a Council cannot demonstrate a shortfall in their housing supply. The amount of weight given to the benefits of a scheme is still a matter of judgement for the decision maker. While every house is important, 3-5 dwellings against a net shortfall of some 2300 homes per year until 2030 can be considered a minor contribution numerically. The

- shortfall is still significant, and the contribution of dwellings to this shortfall should be given positive weight in its own right. However, the amount of weight in a given balancing exercise is still a matter for the decision maker. As such, I do not find this approach was unreasonable; rather, a fundamental disagreement on weighting.
6. Furthermore, the Council concluded that the proposal would be inappropriate in the green belt and would harm openness, with the benefits not outweighing the harm and therefore not providing the very special circumstances required to justify said harm. Whether a proposal meets the exceptions given in policies GB7 is also a matter of planning judgement, as the applicant themselves point out. As the Council concluded that the proposal would be contrary to the Framework and development plan with regards to green belt, this automatically incurs a substantial amount of weight against granting permission.
 7. The Council's view that the appeal site would not constitute a sustainable location is not misconceived. It is a matter of planning judgement based on the merits of the case and it is a judgement the Council was required to make one way or the other. Not having a housing land supply does not negate the need to direct development to the right places. At the time of the decision, the 'tilted balance' was engaged. Moreover, the Council's development plan uses settlement boundaries to guide this judgement. While they are of some age, the new Framework has confirmed this is still a valid approach. Again, this was not unreasonable.
 8. I note the information relating to the on-demand bus service in the applicant's planning statement. The Council advised that this was not available in the area of the appeal site. This was clearly not given weight by the Council and in this respect, I agree that it was an oversight and unreasonable behaviour. However, the Council did clarify its position in the appeal and given the limited weight it gave the service at this stage, I am unconvinced that it would have made a difference to its assessment in this respect. It was disappointing to not assess this meaningfully but given the circumstances of the case I do not find it caused unnecessary expense.
 9. The Council also assessed the impacts of the proposal on highway safety due to increased risk of conflict between pedestrians and motorists. The applicant argues that this cannot fall within the scope of location, land use or amount as these are the limitations of the assessment as advised by the PPG. I disagree with the totality of this statement and while not generally the case, this could fall under the ambit of location if safe access could not possibly be achieved, for example.
 10. However, in this case the Council concluded that future residents would not walk to services and facilities and would instead drive private vehicles to access these. That being said, if there is a low chance of people walking along the road there would be an equally low chance of pedestrian and vehicular conflict.
 11. It seems to me that this consideration was more closely related to the sustainability of the location rather than technical matters of geometry or visibility for access. I agree that it was somewhat unnecessary as another standalone reason for refusal, but its assessment was not unreasonable, nor did it cause the applicant to incur additional unnecessary expense at the appeal stage.
 12. Turning to the planning balance, while the applicant may feel that they justified their case and that there would be minimal effects, this is not poor judgement on the part of the Council to disagree. It is a differing opinion on matters that are invariably non-binary in their assessment. Overall, there was clearly a fundamental

disagreement on the impacts of the proposal, which could have only been resolved by way of an appeal.

Conclusion

13. To conclude, while I have disagreed with the Council with regards to its decision, the reasons given were substantiated and invariably matters of planning judgement. I find that unreasonable behaviour resulting in unnecessary or wasted expense has not been demonstrated and a full award of costs is not warranted. The application is therefore refused.

C McDonagh

INSPECTOR